Public International Law

SOURCES OF INTERNATIONAL LAW

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International Law

SOURCES

THIS WEEK

PART A

- **Treaties**
- **Customary International Law**
- **General Principles of Law**

PART B

- **Judicial Decisions**
- **Scholarly Writings**
- **What is Missing from Article 38 (1) ICJ Statute?**
  - **Unilateral Statements**
  - **Jus Cogens**
  - **Decisions by IOs**
  - **Soft Law/Non-Legally Binding Commitments**

International Law

SOURCES

Article 38(1) Statute, International Court of Justice

Primary & Secondary Sources

Article 38

1. The Court, whose function is to decide in accordance with international law such disputes as are submitted to it, shall apply:

a. international conventions, whether general or particular, establishing rules expressly recognized by the contesting states;

b. international custom, as evidence of a general practice accepted as law;

c. the general principles of law recognized by civilized nations;

d. subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.

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TREATIES

- Treaty is an '*an international agreement concluded between States in written form and governed by international law…*' (Article 2(1)(a)) Vienna Convention on the Law of Treaties).
- An agreement between sovereign States (and in some cases international organisations eg EU), which is binding at international law.
- Treaties also known as 'agreements', 'conventions', `protocols' or `covenants' , and less commonly `exchanges of letters': key is whether States have consented to be bound by the treaty.
- Treaties can be bilateral (between two States) or multilateral (between three or more States).
- Most direct evidence of the existence of a legal obligations

- *Pacta sunt servanda:* states are bound to honour their treaty-based obligations.

*If a state has become party to an international treaty, that implies consent to be bound by the legal obligations established by the treaty.

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TREATIES

- A State party to an international treaty must ensure that its own domestic law and practice are consistent with what is required by the treaty

- The treaty may give general guidance on the measures to be taken at the domestic law level

International Law

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Customary international law arises when a particular conduct (way of behaving) is:

(a) **followed as a general practice among states**

consistent repetition of a particular behaviour, i.e. for a considerable period of time, states have acted in a certain (identical) manner when confronted with the same facts [objective element]; and

(b) **accepted by those states as legally binding**

[*opinio juris sive necessitatis*. Acts motivated by a desire to honour—or create—a legal obligation. Belief of a legal obligation [Subjective-psychological element]

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International Law

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Consistency and Uniformity of Practice

" [T]he Colombian Government has referred to a large number of particular cases in which diplomatic asylum was in fact granted and respected. But it has not shown that the alleged rule of unilateral and definitive qualification was invoked or-if in some cases it was in fact invoked-that it was, apart from conventional stipulations, exercised by the States granting asylum as a right appertaining to them and respected by the territorial States as a duty incumbent on them and not merely for reasons of political expediency. The facts brought to the knowledge of the Court disclose so much uncertainty and contradiction, so much fluctuation and discrepancy in the exercise of diplomatic asylum and in the official views expressed on various occasions, there has been so much inconsistency in the rapid succession of conventions on asylum, ratified by some States and rejected by others, and the practice has been so much influenced by considerations of political expediency in the various cases, that it is not possible to discern in all this any constant and uniform usage, accepted as law…"

Asylum Case (Colombia v Peru) (Judgment) [1950] ICJ Rep 266, 277.

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International Law

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Consistency and Uniformity of Practice

"It is not to be expected that in the practice of States the application of the rules in question should have been perfect, in the sense that States should have refrained, with complete consistency, from the use of force or from intervention in each other's internal affairs. The Court does not consider that, for a rule to be established as customary, the corresponding practice must be in absolutely rigorous conformity with the rule. In order to deduce the existence of customary rules, the Court deems it sufficient that the conduct of States should, in general, be consistent with such rules, and that instances of State conduct inconsistent with a given rule should generally have been treated as breaches of that rule, not as indications of the recognition of a new rule. If a State acts in a way prima facie incompatible with a recognized rule, but defends its conduct by appealing to exceptions or justifications contained within the rule itself, then whether or not the State's conduct is in fact justifiable on that basis, the significance of that attitude is to confirm rather than to weaken the rule."

Military and Paramilitary Activities in and against Nicaragua (Nicaragua v United States of America) (Merits) [1986] ICJ Rep 14, para 186.

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Generality, Uniformity and Duration of Practice

"Although the passage of only a short period of time is not necessarily, or of itself, a bar to the formation of a new rule of customary international law on the basis of what was originally a purely conventional rule, an indispensable requirement would be that within the period in question, short though it might be, State practice, including that of States whose interests are specially affected, should have been both extensive and virtually uniform in the sense of the provision invoked…".

North Sea Continental Shelf Cases (Federal Republic of Germany v Denmark; Federal Republic of Germany v Netherlands) (Judgement) [1969] ICJ Rep 3, para 74.

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Opinio Juris

"Not only must the acts concerned amount to a settled practice, but they must also be such, or be carried out in such a way, as to be evidence of a belief that this practice is rendered obligatory by the existence of a rule of law requiring it. The need for such a belief, i.e., the existence of a subjective element, is implicit in the very notion of the *opinio juris sive necessitatis*. The States concerned must therefore feel that they are conforming to what amounts to a legal obligation. The frequency, or even habitual character of the acts is not in itself enough. There are many international acts, e.g., in the field of ceremonial and protocol, which are performed almost invariably, but which are motivated only by considerations of courtesy, convenience or tradition, and not by any sense of legal duty".

North Sea Continental Shelf Cases (Federal Republic of Germany v Denmark; Federal Republic of Germany v Netherlands) (Judgement) [1969] ICJ Rep 3, para 77.

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Conclusion 6 Forms of practice

1.Practice may take a wide range of forms. It includes both physical and verbal acts. It may, under certain circumstances, include inaction.

2. Forms of State practice include, but are not limited to: diplomatic acts and correspondence; conduct in connection with resolutions adopted by an international organization or at an intergovernmental conference; conduct in connection with treaties; executive conduct, including operational conduct "on the ground"; legislative and administrative acts; and decisions of national courts.

3. There is no predetermined hierarchy among the various forms of practice.

Conclusion 10 Forms of evidence of acceptance as law (*opinio juris*)

1. Evidence of acceptance as law (opinio juris) may take a wide range of forms.

2. Forms of evidence of acceptance as law (opinio juris) include, but are not limited to: public statements made on behalf of States; official publications; government legal opinions; diplomatic correspondence; decisions of national courts; treaty provisions; and conduct in connection with resolutions adopted by an international organization or at an intergovernmental conference.

3. Failure to react over time to a practice may serve as evidence of acceptance as law (opinio juris), provided that States were in a position to react and the circumstances called for some reaction.

ILC, *Draft conclusions on identification of customary international law, with commentaries,* 2018

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International Law

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Particular Customary International Law

- ICL "Identification of Customary International Law", Conclusion 16
- *Right of Passage over Indian Territory, Portugal v India*, Merits, Judgment, [1960] ICJ Rep 6, ICGJ 174

Persistent Objector

- ICL "Identification of Customary International Law", Conclusion 15
- *Fisheries, United Kingdom v Norway*, Merits, Judgment, [1951] ICJ Rep 116, ICGJ 196

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Fisheries Case Illustrated

Figure 1 The construction of baselines



A Indentation is larger than a semi-circle whose diameter is two closing lines, and is therefore a bay. Thus bay closing lines (which total less than 24 miles) are baselines.

B Straight baseline on indented coast fringed with islands.

C Indentation is smaller than area of semi-circle drawn on closing line. Therefore this is not a bay.

D An island generating its own territorial sea.

E Baseline is a line drawn across the mouth of the river that flows directly into the sea.

F Harbour works forming part of the baseline.

G Low tide elevations. One is less than 12 miles from the coast and therefore forms the baseline. The other is more than 12 miles from the coast and therefore does not affect the construction of the baseline

H On the rest of the coast the baseline is the low water mark.

Source: Churchill, R. R. and A. V. Lowe. 1988. *The Law of the Sea*. 2nd ed. Manchester U.K.: Manchester University Press.

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The Relationship Between Treaties and Customary International Law

A rule of international law may be contained in a treaty and be a rule of custom simultaneously

The *Nicaragua* case, ICJ Rep. 1986, p. 14 at paras. 175-178.

a) A treaty may codify a pre-existing rule of custom.

b) A treaty may crystallise a developing rule of custom.

c) A treaty may give rise to a new rule of customary law.

See also *The North Sea Continental Shelf* cases, ICJ Rep. 1969, p. 3.

International Law

SOURCES

GENERAL PRINCIPLES

- Article 38(1) ICJ Statute: “the general principles of law recognized by civilized nations”
- International courts and tribunals often rely on these principles when they cannot find authority in other sources of international law e.g. when a dispute cannot be effectively resolved on the basis of a treaty or customary international law.
- Examples of these general principles of law are **equity**, **good faith**, **res judicata**, and the **impartiality of judges**.
- Example: “Equity” has also been applied in various ways and contexts at the international level.
- It refers to what is **fair and reasonable** in the administration of justice. The International Court of Justice often refers to **equity and equitable principles** when delimiting the maritime boundaries between coastal states with opposite or adjacent coasts.

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"JUDICIAL DECISIONS"

- As a matter of doctrine, judicial decisions are not-in-and-of themselves binding international law. **Article 59 ICJ Statute: "**The decision of the Court has no binding force except between the parties and in respect of that particular case."
- However: judicial decisions carry substantial interpretative weight; International judges and legal practitioners constantly refer to (and base their reasoning on) previous decisions.
- ICJ rarely departs from its jurisprudence

see G Guillaume, 'The Use of Precedent by International Judges and Arbitrators' (2011) 2(1) Journal of International Dispute Settlement 5–23.

International Law

SOURCES

SCHOLARLY WRITINGS [AND THE INTERNATIONAL LAW COMMISSION (ILC)]

- **Article 38(1) ICJ Statute:** *"the teachings of the most highly qualified publicists of the various nations"*
- Academic interpretations and commentaries of esteemed academics are useful to better understand the law or clarify the law where there is ambiguity
- **International Law Commission (ILC**) - important role on the codification and progressive development of international law and its drafts are often referred to in the judgments of the ICJ e.g. *"Draft Articles on State Responsibility"*
- (see also ongoing work of ILC on Sea Level Rise & International Law)

International Law

SOURCES

SO FAR…

- Treaties
- Customary International Law
- General Principles
- Judicial Decisions & Scholarly Writings

… OTHER SOURCES?

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UNILATERAL STATEMENTS/ACTS

Unilateral statements by state representatives can create obligations under international law

"A state may evidence a clear intention to accept obligations vis-à-vis certain other states **by a public declaration which is not an offer or otherwise dependent on reciprocal undertakings** from its addressees" (Crawford, *Brownlie's Principles*)

Legal Status of Eastern Greenland (Denmark v Norway), Judgment, 1933, PCIJ, Series A/B, No. 53

- Norwegian FM, Mr Ihlen: *"I told the Danish Minister today that the Norwegian Government would not make any difficulty in the settlement of this question."*
- ICJ: *"**The promise was unconditional and definitive**…. It follows that, as a result of the undertaking involved in the Ihlen declaration of July 22nd, 1919, **Norway is under an obligation to refrain from contesting Danish sovereignty over Greenland as a whole**, and a fortiori to refrain from occupying a part of Greenland."*

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UNILATERAL STATEMENTS/ACTS

Nuclear Test Cases (Australia v France, New Zealand v France) 1974 ICJ Rep 253.

Before a hearing on the merits could proceed, the French President and Foreign Minister made a series of statements making it clear that France would cease atmospheric testing. The Court had to consider whether these statements could have created a binding obligation for France.

The ICJ found that official French statements testified to an intention to be legally bound to cease atmospheric tests.

> ***It is well recognized that declarations made by way of unilateral acts, concerning legal or factual situations, may have the effect of creating legal obligations.*** *Declarations of this kind may be, and often are, very specific. When it is the intention of the State making the declaration that it should become bound according to its terms, that intention confers on the declaration the character of a legal undertaking, the State being thenceforth legally required to follow a course of conduct consistent with the declaration.*
>
> *…nothing in the nature of a quid pro quo, nor any subsequent acceptance of the declaration, nor even any reply or reaction from other States, is required' for a unilateral statement to be legally binding.*

See also ILC, 'Guiding Principles applicable to unilateral declarations of States capable of creating legal obligations' (2006), UN Doc. A/61/10, principle 5 (ILC Guiding Principles).

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JUS COGENS

- Peremptory norms from which no derogation is permitted
- Debate as to whether it is a subset of CIL
- Art. 53 VCLT define *jus cogens* as:

"For the purposes of the present Convention, a peremptory norm of general international law is a norm accepted and recognized by the international community of States as a whole as a norm from which no derogation is permitted and which can be modified only by a subsequent norm of general international law having the same character".

The content of *jus cogens* is controversial. ILC identified, among others: genocide, crimes against humanity, aggression, slavery, torture, and the right to self-determination.

Consequence: No derogation permitted

International Law

SOURCES

Decision, Resolutions of International Organisations

INTERNATIONAL CIVIL AVIATION ORGANIZATION (ICAO)

Rules concerning the regulation of flights over the high seas

UN SECURITY COUNCIL DECISIONS

Article 25 UN Charter
"The Members of the United Nations agree to accept and carry out the decisions of the Security Council in accordance with the present Charter."

E.g. UNSC Res 1373 [2001] Counter-terrorism

1. *Decides* that all States shall:

(a) Prevent and suppress the financing of terrorist acts;

(b) Criminalize the wilful provision or collection, by any means, directly or indirectly, of funds by their nationals or in their territories with the intention that the funds should be used, or in the knowledge that they are to be used, in order to carry out terrorist acts;

(c) Freeze without delay funds and other financial assets or economic resources of persons who commit, or attempt to commit, terrorist acts or participate in or facilitate the commission of terrorist acts; of entities owned or controlled directly or indirectly by such persons; and of persons and entities acting on behalf of, or at the direction of such persons and entities, including funds derived or generated from property owned or controlled directly or indirectly by such persons and associated persons and entities;

(d) Prohibit their nationals or any persons and entities within their territories from making any funds, financial assets or economic resources or financial or other related services available, directly or indirectly, for the benefit of persons who commit or attempt to commit or facilitate or participate in the commission of terrorist acts, of entities owned or controlled, directly or indirectly, by such persons and of persons and entities acting on behalf of or at the direction of such persons;

International Law

SOURCES

SOFT LAW (NON- LEGALLY BINDING COMMITMENTS)

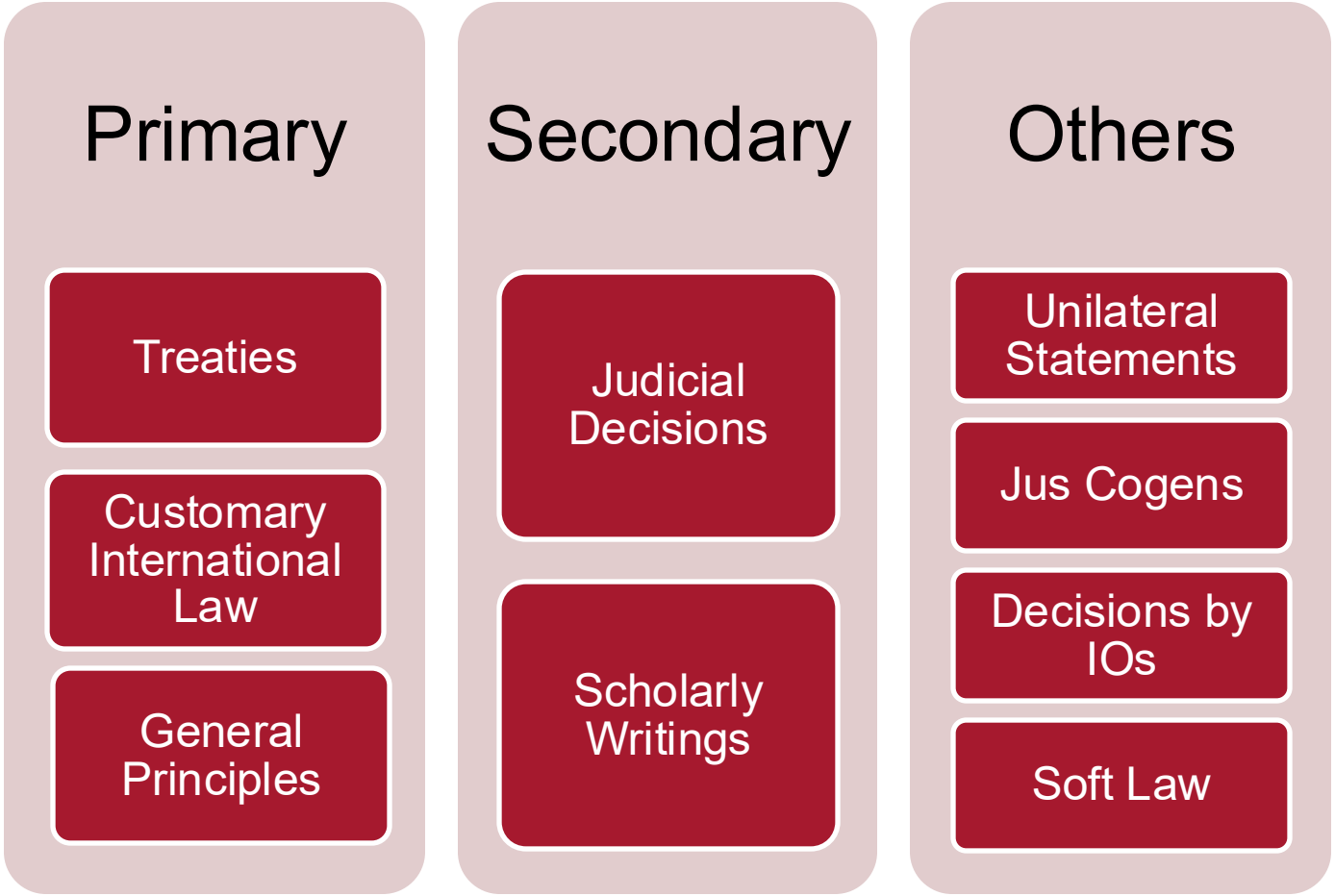
- ✓ Political compromises vs. legally-binding undertakings: key is to identify the intention of the parties (did the parties intend to create a legal obligation or not?)
- ✓ When a legally non-binding instrument begins to play a role in the creation of international law, it can be referred to as 'soft law'. This is in contrast to 'hard law', which describe the legally-binding sources.
- ✓ '**Soft law' instruments do not constitute independent sources of international law.** HOWEVER, 'soft law' instruments may assist in the interpretation of one of the recognized legal sources, most notably customary law and treaty law.

Example**: Declarations adopted by the United Nations General Assembly** are not legally binding but can shape international practice and can lead to the formation of custom or even result in the adoption of new treaties

(e.g. in international environmental law, some of the most important instruments, such as the 1972 Stockholm Declaration and the 1992 Rio Declaration, are non-binding 'soft law' documents but have resulted progressively in binding legal commitments) .

International Law

SOURCES IN REVIEW



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International Law

USEFUL LINKS & DATABASES

Government websites & databases
e.g. Australian Government Department of Foreign Affairs & Trade (includes a treaty catalogue);
Australasian Legal Information Institute (AustLII)

Online databases
e.g. Max Planck Encyclopedia of Public International Law (useful entries on all matters of international law & sources)

United Nations
e.g. UN Audiovisual Library of International Law

Courts & Tribunals
e.g. International Court of Justice (principal judicial organ of the UN)

International Law Journals
e.g. International & Comparative Law Quarterly (ICLQ); American Journal of International Law (AJIL); European Journal of International Law (EJIL) etc.

International Law Blogs
e.g. EJIL: Talk! Blog of the European Journal of International Law

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